CLIENT SERVICE AGREEMENT

Website Hosting, Maintenance & Support Terms

Effective August 13, 2026

These Website Hosting, Maintenance & Support Terms ("Terms") govern recurring website services provided by Minutemen Marketing ("Minutemen," "we," "us," or "our") to the customer identified on the applicable proposal, invoice, order, or subscription ("Client"). By accepting a proposal that references these Terms, enrolling in a subscription, authorizing recurring billing, paying an invoice that references these Terms, or continuing to use the services after receiving these Terms, Client agrees to be bound by them.

> **IMPORTANT:** The subscription covers routine hosting, maintenance, and minor changes. It is not an unlimited redesign, development, or labor plan. Minutemen determines whether requested work is included or separately billable under Section IV below.

I. SUBSCRIPTION SERVICES

Client's recurring subscription includes the services identified on the applicable proposal, invoice, or service package. Depending on the package, those services may include website hosting, routine maintenance, platform or software updates, reasonable troubleshooting, security-related upkeep, and minor website or content changes requested by Client.

The subscription is designed for ongoing care of an existing website. Unless expressly stated in writing, it does not include unlimited design work, redevelopment, new-feature development, custom coding, or a complete website rebuild.

II. MINOR CHANGES GENERALLY INCLUDED

A minor change is generally a limited update that can be completed without materially changing the website's existing structure, functionality, design system, or overall scope. Examples may include updating existing text, contact information, business hours, links, photographs, team members, products or services; correcting typographical errors; replacing an existing image; or making small formatting or styling adjustments to an existing page or section.

These examples are illustrative only. A request does not become included merely because it resembles an example or can be described as a 'small change.'

III. MAJOR OR OUT-OF-SCOPE WORK

Major or out-of-scope work is billed separately and may include substantial redesigns; new pages or substantial new sections; restructuring navigation, page architecture, or layouts; new functionality; custom code; e-commerce work; booking, membership, database, portal, CRM, API, payment, or other integrations; platform migrations; substantial SEO projects; copywriting or branding projects; extensive troubleshooting caused by third-party changes; or any work that reasonably constitutes a separate project rather than routine maintenance.

Third-party charges such as premium software, plugins, stock assets, licenses, APIs, domain fees, paid integrations, or outside contractors are not included unless the applicable proposal expressly states otherwise.

IV. DETERMINATION OF SCOPE; MINUTEMEN'S DISCRETION

Because website requests vary in complexity and the line between a minor change and a major project is inherently subjective, Minutemen reserves the right, in its reasonable discretion and good-faith business judgment, to determine whether a requested change is included within the subscription or constitutes additional, out-of-scope work.

Minutemen may consider estimated labor, technical complexity, number of pages or components affected, whether new functionality is required, whether the request materially changes the existing design or structure, the need for custom development or third-party services, and the cumulative volume or frequency of Client requests.

Minutemen's reasonable classification of a request will control for billing and scope purposes. Inclusion of a similar request on a prior occasion does not require Minutemen to classify the same or a similar request as included in the future.

V. REASONABLE USE AND CUMULATIVE REQUESTS

The subscription is intended for normal, reasonable ongoing maintenance needs. Even when individual requests might otherwise be minor, an unusually high frequency, volume, or cumulative amount of requested work may be treated as exceeding the subscription's intended scope.

Minutemen may consolidate extensive requests into a separately priced project, quote additional labor, or recommend a different service plan. The inclusion of minor changes does not constitute an agreement to provide unlimited revisions, development time, design time, or labor.

VI. APPROVAL OF ADDITIONAL WORK

If Minutemen determines that requested work is outside the subscription, Minutemen may provide an estimate, fixed quote, hourly rate, or other additional fee before beginning that work. Client is not required to approve out-of-scope work, and Minutemen is not required to perform it unless the parties agree to the applicable scope and price.

Routine investigation reasonably necessary to determine whether a reported issue is maintenance-related may be performed before a separate quote is issued. If the issue is ultimately caused by an excluded condition or third party, further corrective work may be separately billable.

VII. MONTHLY SUBSCRIPTIONS

A monthly subscription bills in recurring monthly periods at the rate shown at enrollment or on the applicable invoice. Unless otherwise stated in writing, a monthly subscription continues month-to-month until canceled.

Client may cancel a monthly subscription before the next billing date using the cancellation method provided by Minutemen. Cancellation prevents future renewal charges and takes effect at the end of the then-current paid monthly billing period unless Minutemen agrees to an earlier termination. Fees already paid for the current billing period are non-refundable except as required by applicable law.

VIII. ANNUAL SUBSCRIPTIONS

An annual subscription is billed for a full twelve-month service term and may be offered at a lower effective monthly rate in exchange for the annual commitment. Unless otherwise stated in writing, an annual subscription automatically renews for successive twelve-month terms at the then-applicable annual rate until canceled.

Client may cancel renewal of an annual subscription before the next annual renewal date using the cancellation method provided by Minutemen. Unless otherwise required by law or expressly agreed in writing, cancellation during an already-paid annual term stops the next renewal but does not create a prorated refund for the unused portion of the current annual term; service will ordinarily continue through the end of that paid term.

Minutemen may provide advance notice of an upcoming annual renewal or material pricing change when required by applicable law or as a matter of business practice.

IX. CANCELLATION METHOD

Minutemen will provide at least one cost-effective and reasonably easy-to-use cancellation method, which may include email, an online account or billing portal, or another method identified on Client's invoice or subscription confirmation. Client should retain confirmation of any cancellation request.

A cancellation request does not cancel or waive charges already due for completed work, approved out-of-scope work, or a billing period or annual term that has already begun, except where applicable law provides otherwise.

X. BILLING, PAYMENT, AND FAILED PAYMENTS

Subscription fees are charged according to the billing frequency and amount shown on the applicable invoice, proposal, or enrollment screen. If Client enrolls in automatic payments, Client authorizes Minutemen and its designated payment processor, including KadePay where applicable, to charge the payment method on file for recurring fees and approved additional charges.

If a payment fails or becomes overdue, Minutemen may suspend maintenance, support, hosting, or other services after reasonable notice. Suspension does not waive amounts already due. Client is responsible for keeping its billing and contact information current.

XI. PRICE CHANGES

Minutemen may change subscription pricing prospectively. Any price change will be communicated before the new price is charged, and Client may cancel future renewal in accordance with these Terms. Where applicable law requires additional notice, consent, cancellation rights, or refunds in connection with a price increase, Minutemen will follow those requirements.

XII. TURNAROUND AND SERVICE LEVELS

Minutemen will use commercially reasonable efforts to address maintenance and minor-change requests within a reasonable timeframe based on complexity, workload, urgency, availability, and dependencies. Unless a separate written service-level commitment applies, no specific response or completion time is guaranteed.

XIII. CLIENT RESPONSIBILITIES

Client must provide timely and accurate instructions, content, files, approvals, credentials, and access reasonably needed to perform the services. Client represents that it has the right to use all text, images, trademarks, logos, data, and other materials it provides to Minutemen.

Minutemen is not responsible for delays or errors caused by incomplete, inaccurate, late, or conflicting Client instructions or by Client's failure to provide required access.

XIV. THIRD-PARTY SERVICES AND WEBSITE AVAILABILITY

Websites depend on third-party infrastructure and software. Minutemen does not guarantee uninterrupted or error-free operation and is not responsible for outages, security incidents, policy changes, compatibility problems, failures, or limitations caused by hosting providers, registrars, internet service providers, content management systems, plugins, APIs, payment processors, browsers, search engines, cyberattacks, or other circumstances outside Minutemen's reasonable control.

Minutemen may substitute or discontinue a third-party tool when reasonably necessary to maintain security, compatibility, or service quality.

XV. CHANGES BY CLIENT OR THIRD PARTIES

Minutemen is not responsible for problems caused by changes made to the website, hosting environment, DNS, software, code, content, credentials, or integrations by Client or another third party without Minutemen's involvement. Work needed to investigate, reverse, repair, or accommodate such changes may be billed separately.

XVI. BACKUPS, SECURITY, AND DATA

Minutemen may maintain backups or security measures as part of its normal operations, but no backup or security system is infallible. Unless a separate written agreement expressly states otherwise, Client remains responsible for retaining independent copies of mission-critical business content and data.

Client must promptly notify Minutemen of suspected compromise of credentials or unauthorized website access.

XVII. INTELLECTUAL PROPERTY

Client retains ownership of Client-provided content, trademarks, logos, and other materials. Ownership or licensing of website designs, templates, custom code, proprietary tools, stock assets, third-party components, and materials created by Minutemen is governed by the original development proposal or separate written agreement and applicable third-party licenses.

Unless expressly transferred in writing, Minutemen retains ownership of its pre-existing tools, methods, reusable code, processes, know-how, and other proprietary materials.

XVIII. WARRANTIES; LIMITATION OF LIABILITY

Except for any express written warranty in a separate agreement, services are provided on a commercially reasonable basis without any guarantee that the website will achieve a particular level of traffic, revenue, search ranking, lead volume, conversion rate, uptime, or business result.

To the fullest extent permitted by law, Minutemen will not be liable for indirect, incidental, special, consequential, exemplary, or punitive damages, or for lost profits, lost revenue, lost data, business interruption, or loss of goodwill arising from the services. To the fullest extent permitted by law, Minutemen's aggregate liability arising out of the subscription services will not exceed the fees actually paid by Client to Minutemen for the subscription services during the three months immediately preceding the event giving rise to the claim.

Nothing in these Terms excludes liability that cannot lawfully be excluded or limited.

XIX. SUSPENSION AND TERMINATION BY MINUTEMEN

Minutemen may suspend or terminate services for material nonpayment, misuse of the services, unlawful or infringing content, security risk, abusive conduct toward Minutemen personnel, material breach of these Terms, or circumstances that make continued service commercially or technically impracticable. Where reasonably practicable, Minutemen will provide notice and an opportunity to cure before termination.

Any migration, export, transfer, or transition assistance requested after termination may be separately billable. Third-party licenses or services may not be transferable.

XX. GOVERNING LAW; DISPUTES

These Terms are governed by the laws of the State of New York, without regard to conflict-of-laws principles. To the extent permitted by law, any court proceeding relating to these Terms or the services will be brought in a state or federal court located in New York, with venue in the county in which Minutemen maintains its principal place of business.

Before filing a lawsuit, the parties agree to make a good-faith effort to resolve the dispute through direct written communication for at least fifteen days, except where immediate injunctive or emergency relief is reasonably necessary.

XXI. GENERAL TERMS

These Terms, together with the applicable proposal, invoice, order, subscription description, and any separately signed agreement, constitute the parties' agreement concerning the recurring services. If a separately signed written agreement directly conflicts with these Terms, the separately signed agreement controls to the extent of the conflict.

Minutemen's failure to enforce a provision on one occasion is not a waiver. If any provision is held unenforceable, the remaining provisions remain in effect and the affected provision will be enforced to the maximum extent permitted by law. Client may not assign these Terms without Minutemen's written consent, except in connection

with a bona fide sale of substantially all of Client's business or assets. Minutemen may use subcontractors or service providers in performing the services.

Minutemen may update these Terms prospectively. Material changes affecting an existing recurring subscription will be communicated before they become effective when required by applicable law.

CLIENT ACKNOWLEDGMENT

By accepting a proposal that references these Terms, enrolling in or renewing a subscription, authorizing recurring billing, or paying an invoice that clearly references these Terms and makes them available for review, Client acknowledges receipt of these Terms and agrees to be bound by them.

Suggested invoice reference

Payment of this invoice and/or enrollment in recurring services constitutes acceptance of Minutemen Marketing's Website Hosting, Maintenance & Support Terms, incorporated by reference and made available at the link or attachment provided with this invoice.